

Financial Statement

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 – RULE 6.06(5)

Please type or print clearly and mark [X] all boxes that apply. Attach extra pages if you need more space to answer any question/s.

Filed in:

- ☒ Federal Circuit and Family Court of Australia
☐ Family Court of Western Australia
☐ Other (specify) _____

Filed on behalf of:Full name: Stephen Christopher Cooke

Client ID _____

File number _____

Filed at NEWCASTLE

Filed on _____

Court location _____

Next Court date (if known) _____

This form is to be used by a party to a financial proceeding, such as property settlement, maintenance, child support or financial enforcement.

Part A About you

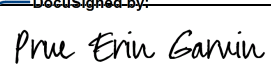
1	What is your family name as used now?	Given names?
	Cooke	Stephen Christopher
	213 Morgan Street	
	Merewether	State NSW Postcode 2291

Please tick as applicable – only one box should be selected

AFFIDAVIT – for financial proceedings:

I swear* / affirm* that:

- (a) I have read Rule 6.06 and I am aware that by law I have an obligation to make a full and frank disclosure of my financial circumstances to the Court and each other party. In particular, I have disclosed in this document or in an affidavit filed by me or on my behalf under Rule 6.06(6), all matters I am required to disclose under Rule 6.06.
- (b) The information in the financial statement and any attachments to it which are within my personal knowledge are true. Where I have given an estimate in this financial statement, it is based on my knowledge and is given in good faith. All other information given in this financial statement and any attachments is true to the best of my knowledge, information and belief.
- (c) I have no income, property or financial resources other than as set out in this document or any affidavit filed by me under Rule 6.06(6).

Your signature  DocuSigned by: F0762E05F9A94BE...	Place Merewether Date 5/12/2023
 DocuSigned by: 282EEC688F2A48B... Before me (Signature of witness)	Prue Erin Garvin (JP 192672) Full name of witness (please print)

- ☒ Justice of the Peace
☐ Notary public
☐ Lawyer
☐ Authorised Staff Member of the Court

* delete whichever is inapplicable

This document was signed and witnessed over audio visual link in accordance with section 14G of the Electronic Transactions Act 2000.

This financial statement was prepared by:

☐ the applicant ☐ the respondent ☒ lawyer

Samantha Jane Miller

CLA7584701

PRINT NAME AND LAWYER'S CODE



Part B Financial summary

IMPORTANT: As you complete the rest of this form you will be asked to transfer the totals for Items D, G, I-L to this summary

- | | | | | |
|---|----------|---|----|-----------|
| 2 | A | Your total average weekly income. (THIS IS THE FIGURE AT ITEM 16) | \$ | NIL |
| | B | Your total personal expenditure. (THIS IS THE FIGURE AT ITEM 33) | \$ | NIL |
| | C | Total value of property owned by you. (THIS IS THE FIGURE AT ITEM 44) | \$ | 1,264,293 |
| | D | Total gross value of your superannuation. (THIS IS THE FIGURE AT ITEM 45) | \$ | 150,340 |
| | E | Total of your liabilities. (THIS IS THE FIGURE AT ITEM 55) | \$ | 562,397 |
| | F | Total of your financial resources. (THIS IS THE FIGURE AT ITEM 58) | \$ | NIL |

Part C Your employment details

- 3 What is your current occupation?

Parent and Homemaker

- 4 Are you employed?

☒

No. Go to Part D

☐

Yes. Give details

☐

full time

☐

permanently

☐

on contract

☐

part time

☐

casually

- 5 What is the name of your employer?

- 6 What is the address of your employer?

STATE	POSTCODE	PHONE

- 7 How long have you been employed at this place?

YEARS

MONTHS

DAYS

- 8 Are you self-employed?

☒

No

☐

Yes

STATE THE NAME OF THE BUSINESS / COMPANY / PARTNERSHIP / TRUST

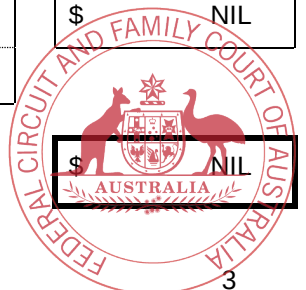


Part D **Your income**

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'.
IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED

AVERAGE WEEKLY AMOUNT

9	Total salary or wages before tax		\$	NIL
10	Investment income (before tax)	INCOME TYPE (eg. rent, interest, dividend)	\$	NIL
		PAID BY (bank, mortgagor, company, tenant)		
		INCOME TYPE (eg. rent, interest, dividend)	\$	NIL
		PAID BY (bank, mortgagor, company, tenant)		
11	Income from business/ partnership/ company/ trust	NAME OF BUSINESS/ PARTNERSHIP/ COMPANY/ TRUST	\$	NIL
		TYPE OF BUSINESS		
		ADDRESS OF BUSINESS/ PARTNERSHIP/ COMPANY/ TRUST		
		State Postcode		
12	Government benefits	TYPE OF BENEFIT	\$	NIL
		TYPE OF BENEFIT	\$	NIL
13	Maintenance/ child support	PAID BY		
		FOR THE BENEFIT OF	\$ REQUIRED TO BE PAID	ACTUALLY RECEIVED
			\$ NIL	\$ NIL
		PAID BY		
		FOR THE BENEFIT OF	\$ REQUIRED TO BE PAID	ACTUALLY RECEIVED
			\$ NIL	\$ NIL
14	Benefits from employment/ business	TYPE OF BENEFIT	\$	NIL
		TYPE OF BENEFIT	\$	NIL
15	Other income	PAID BY	\$	NIL
		TYPE OF BENEFIT		
16	TOTAL AVERAGE WEEKLY INCOME WRITE THE ITEM 16 TOTAL AT ITEM 2A ON PAGE 2 OF THIS FORM			\$ NIL



Part E Other income earners in your household

Give the name, age and relationship to you and gross income of each other occupant of your household

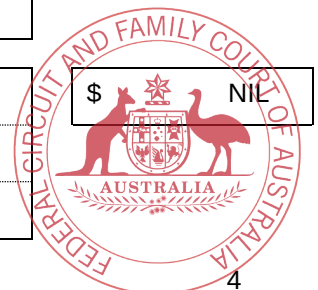
	AGE	RELATIONSHIP TO YOU	AVERAGE WEEKLY AMOUNT
17 NAME Heather Anne Cooke	45	Wife / Respondent	\$ E6,806 (Subject to change after receipt of financial disclosure from the Respondent)
NAME _____	_____	_____	\$ _____
NAME _____	_____	_____	\$ _____

Part F Expenses paid by others for your benefit

18 PAID BY: Respondent	TYPE OF EXPENSE: All	\$ _____
PAID BY _____	TYPE OF EXPENSE _____	\$ _____
PAID BY _____	TYPE OF EXPENSE _____	\$ _____

Part G Personal expenditure**NOTE:** GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'.
IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED

	AVERAGE WEEKLY AMOUNT
19 Total income tax	\$ NIL
20 Superannuation PLAN NAME Future Super	\$ NIL
21 Mortgage payments/ rent NAME OF LENDER/LANDLORD	\$ NIL
22 Rates, unit levies	\$ NIL
23 Other mortgage payment NAME OF LENDER ADDRESS OF PROPERTY	\$ NIL
24 Other rates, unit levies	\$ NIL
25 Life insurance premiums TYPE OF POLICY POLICY NO. NAME OF INSURER	\$ NIL
TYPE OF POLICY POLICY NO. NAME OF INSURER	\$ NIL



PERSONAL EXPENDITURE - CONTINUED

		AVERAGE WEEKLY AMOUNT	
26 Other insurance premiums	TYPE OF POLICY	\$ NIL	
	POLICY NO:		
	NAME OF INSURER		
	TYPE OF POLICY	\$ NIL	
	POLICY NO:		
	NAME OF INSURER		
	TYPE OF POLICY	\$ NIL	
	POLICY NO:		
	NAME OF INSURER		
27 Motor vehicle registration	REG. NO: VEHICLE MAKE	\$ NIL	
	28 Hire purchase/ lease agreements	DESCRIBE THE PROPERTY	\$ NIL
NAME OF COMPANY/ PERSON			
29 Loan repayments	NAME OF LENDER	\$ NIL	
	TYPE OF LOAN		
30 Credit card payments	CARD TYPE Minimum Payment \$	\$ NIL	
	NAME OF COMPANY		
	CARD TYPE Minimum Payment \$	\$ NIL	
	NAME OF COMPANY		
31 Maintenance payments/ child support	PAID FOR THE BENEFIT OF	ACTUAL PAYMENT \$ NIL	
	☐ assessment		AMOUNT OF ASSESSMENT, AGREEMENT OR ORDER \$
	☐ agreement		
	☐ order		
32 Total of all other expenditure	Internet, personal mobile	\$ NIL	

33

TOTAL PERSONAL EXPENDITURE
WRITE THIS ITEM 33 TOTAL AT ITEM 2B ON PAGE 2 OF THIS FORM

\$ NIL



Part H Personal expenses you pay for the benefit of others

- 34 State which of the expenses in Part G are paid by you for other persons

NAME OF PERSON

GIVE DETAILS

\$ NIL

NAME OF PERSON

GIVE DETAILS

\$ NIL

Part I Property owned by you

CURRENT VALUE OF YOUR SHARE

- 35 Home

FULL NAME OF THE REGISTERED OWNERS

Stephen Christopher Cooke and Heather Anne Cooke (as Joint Tenants)

PROPERTY ADDRESS Unit 1/213 Morgan Street, Merewether NSW 2291

YOUR % SHARE 50

\$ E800,000

- 36 Other real estate

PROPERTY ADDRESS

REGISTERED OWNERS:

YOUR % SHARE

PROPERTY ADDRESS

REGISTERED OWNERS:

YOUR % SHARE

\$

\$

- 37 Funds in banks, building societies, credit unions or other financial institutions

NAME AND BRANCH BSB Joint WBC Offset Account

ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke, Account ending #3193

CURRENT BALANCE \$

\$ 2,313

NAME AND BRANCH BSB Joint WBC Choice Account

ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke, Account ending #5055

CURRENT BALANCE \$

\$ 0

NAME AND BRANCH BSB Joint WBC Offset Account

ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke, Account ending #5063

\$ 0



NAME AND BRANCH BSB Joint WBC Offset Account
ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke, Account ending #2594

\$0

38 Investments

NAME AND TYPE OF INVESTMENT Praemium Prae Investment Portfolio as at 27.11.2023 (ID: SMA00418788)
FULL NAMES OF ALL OWNERS Stephen Christopher Cooke
NUMBER OF SHARES HELD YOUR % SHARE 100
NAME AND TYPE OF INVESTMENT
FULL NAMES OF ALL OWNERS
NUMBER OF SHARES HELD YOUR % SHARE

\$ 148,989

\$ NIL

PROPERTY OWNED BY YOU - CONTINUED

CURRENT VALUE OF YOUR SHARE

39 Life Insurance
policies

POLICY TYPE	POLICY NO.
NAME OF INSURANCE COMPANY	
FULL NAMES OF ALL OWNERS	YOUR % SHARE

\$ NIL

40 Motor vehicle

YEAR	MAKE
MODEL	REGISTRATION NO.
FULL NAME OF REGISTERED OWNER/S YOUR % SHARE	
YEAR	MAKE
MODEL	REGISTRATION NO.
FULL NAME OF REGISTERED OWNER/S YOUR % SHARE	

\$ NIL

\$ NIL



41 Interest in a business including a business operated by you as a sole trader, in a partnership or through a proprietary company or a trust

NAME OF BUSINESS
ADDRESS OF BUSINESS
YOUR % SHARE
Business type (Mark [X] which applies) ☐ Sole trader ☐ Partnership ☐ Proprietary company / trust

\$ NIL

42 Household contents

\$ Nominal

43 Other personal property

SPECIFY
YOUR % SHARE

\$ NIL

44

TOTAL VALUE OF PROPERTY OWNED BY YOU
WRITE THIS ITEM 44 TOTAL AT ITEM 2C ON PAGE 2 OF THIS FORM

\$ 1,264,293

Part J Superannuation

You must attach a completed Superannuation Information Form for each superannuation interest if you are seeking an order for property settlement.

45 Interest in superannuation

NAME OF SUPERANNUATION FUND
Future Super as at 15.11.2023

GROSS VALUE

\$150,340

TYPE OF INTEREST

- | | |
|---|---|
| ☒ Accumulation interest | ☐ Retirement saving account |
| ☐ Partially vested accumulation interest | ☐ Small superannuation account |
| ☐ Defined benefit interest | ☐ Percentage only interest |
| ☐ Self managed fund | ☐ Approved deposit fund |
| ☐ Eligible annuity | |

NAME OF SUPERANNUATION FUND

\$ NIL

TYPE OF INTEREST

- | | |
|---|---|
| ☐ Accumulation interest | ☐ Retirement saving account |
| ☐ Partially vested accumulation interest | ☐ Small superannuation account |



- ☐ Defined benefit interest
- ☐ Percentage only interest
- ☐ Self managed fund
- ☐ Approved deposit fund
- ☐ Eligible annuity

NAME OF SUPERANNUATION FUND 3

\$NIL

TYPE OF INTEREST

- ☐ Accumulation interest
- ☐ Retirement saving account
- ☐ Partially vested accumulation interest
- ☐ Small superannuation account
- ☐ Defined benefit interest
- ☐ Percentage only interest
- ☐ Self managed fund
- ☐ Approved deposit fund
- ☐ Eligible annuity

TOTAL GROSS VALUE OF YOUR SUPERANNUATION
WRITE THIS ITEM 45 TOTAL AT ITEM 2D ON PAGE 2 OF THIS FORM

\$150,340



Part K Your liabilities**AMOUNT OF YOUR SHARE**

46 Home mortgage/s

FULL NAMES OF ALL BORROWERS Stephen Christopher Cooke and Heather Anne Cooke
3 x separate Westpac Mortgage over Merewether property
YOUR % SHARE 50

\$ 524,053

AMOUNT OF YOUR SHARE

47 Other Mortgages

FULL NAMES OF ALL BORROWERS Stephen Christopher Cooke and Heather Anne Cooke
Westpac Mortgage over Southport Property, Account ending #7778
YOUR % SHARE 50

\$ 124,882

48 Total income tax assessed and unpaid for the last financial year Date due: / /

\$ NIL

49 Total income tax assessed and unpaid in previous financial years

\$ NIL

AMOUNT OF YOUR SHARE

50 Loans

NAME OF LENDER
TYPE OF LOAN
FULL NAMES OF ALL BORROWERS
YOUR % SHARE

\$ NIL

51 Credit/ charge cards

SPECIFY CARD PROVIDER AND TYPE

\$ NIL

SPECIFY CARD PROVIDER AND TYPE

\$ NIL

AMOUNT OF YOUR SHARE

52 Hire purchase/ lease

NAME OF LENDER
Date of final payment _/_/_
FULL NAMES OF ALL PERSONS NAMED IN THE AGREEMENT
YOUR % SHARE
NAME OF LENDER
Date of final payment _/_/_
FULL NAMES OF ALL PERSONS NAMED IN THE AGREEMENT
YOUR % SHARE

\$ NIL

\$ NIL



YOUR LIABILITIES - CONTINUED

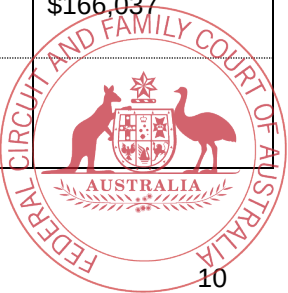
		AMOUNT OF YOUR SHARE
53 Other personal liabilities	SPECIFY	\$ NIL
	FULL NAME OF ANY OTHER LIABLE PERSON	
	YOUR % SHARE	
54 Other personal business liabilities	SPECIFY	\$ NIL
	FULL NAME OF ANY OTHER LIABLE PERSON	
	YOUR % SHARE	
55	WRITE THIS ITEM 55 TOTAL AT ITEM 2E ON PAGE 2 OF THIS FORM	TOTAL LIABILITIES \$ 562,397

Part L Financial resources

56 Interest in any trust or deceased estate	SPECIFY	\$ NIL
57 Other financial resources	SPECIFY	\$ NIL
58	WRITE THIS ITEM 58 TOTAL AT ITEM 2F ON PAGE 2 OF THIS FORM	TOTAL FINANCIAL RESOURCES \$ NIL

Part M About disposal of property

	Item	How disposed of	Value/ amount received
59 Specify property falling within Rule 6.06(3)(g) disposed of by you or on your behalf in the 12 months before separation and since your separation	37 – Account ending #2594	Unilaterally Withdrawn by the Respondent	\$29,750
	37 – Account ending #5063	Unilaterally Withdrawn by the Respondent	\$173,000
	47 – Account ending #7778	Unilaterally Withdrawn by the Respondent	\$166,037



Part N Orders for maintenance, child support, financial enforcement

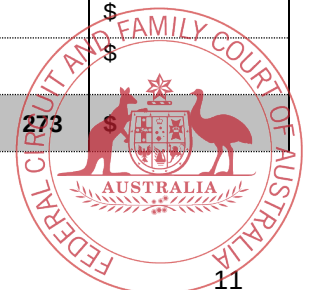
Complete and attach this page only if the application is for orders for maintenance for yourself, the other party or your children or child support or financial enforcement

60

Average weekly expenses

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'. IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED

ITEM	TOTAL	FOR YOU	FOR CHILDREN (IF APPLICABLE)	OTHER ADULTS (IF APPLICABLE)
Food	\$ 300	\$	\$	\$
Household supplies	\$ 30	\$	\$	\$
House repairs	\$ E38	\$	\$	\$
Gas	\$ E60	\$	\$	\$
Electricity	\$ E51	\$	\$	\$
Internet	\$ 28	\$	\$	\$
Telephone	\$ 16	\$	\$	\$
Motor vehicle				
petrol	\$ E60	\$ E60	\$	\$
maintenance	\$ E50	\$ E50	\$	\$
Fares/ car parking	\$ 30	\$ E30	\$	\$
Clothing and shoes	\$ 130	\$ 70	\$ 60	\$
Children's activities	\$ E90	\$	\$ E90	\$
Child minding	\$ NIL	\$	\$	\$
Medical, dental and optical (not including health insurance premiums)	\$ 76	\$ 58	\$ 18	\$
Entertainment/ hobbies	\$ 40	\$	\$	\$
Holidays	\$ 162	\$ 81	\$ 81	\$
Education expenses, including fees and levies	\$ E15	\$	\$ 15	\$
Chemist/ pharmaceutical	\$ 26	\$ 17	\$ 9	\$
Gardening/ lawn mowing	\$ 10	\$ 10	\$	\$
Cleaning (house/ pool)	\$ NIL	\$	\$	\$
Repairs – furnishings and appliances	\$ 100	\$	\$	\$
Dry cleaning	\$ NIL	\$	\$	\$
Books and magazines	\$ 10	\$	\$	\$
Gifts	\$ 50	\$	\$	\$
Hairdressing, toiletries	\$ 50	\$	\$	\$
Other necessary commitments (specify)	\$ 35	\$	\$	\$
TOTAL	\$ 1,457	\$ 376	\$ 273	



Part O

Additional information

You should set out here or on an additional page any item that you may not be able to include in any section of the document. Please include the Part and paragraph number that it continues from.

This application was prepared by

☐ applicant/s

☐ respondent/s

☒ lawyer

Samantha Jane Miller

CLA7584701

PRINT NAME AND LAWYER'S CODE

Approved by Chief Justice/Chief Judge pursuant to Rule 15.21

0921V1

